

then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$7,007.69, less any credits for payments received.

The Defendant made payments of \$0.

Costs are \$0.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$7,007.69.

Plaintiff shall submit the order and proposed judgment.

10. 9:00 AM CASE NUMBER: L25-05481

CASE NAME: JPMORGAN CHASE BANK, N.A. VS. KELLY CLAWSON

*HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT

FILED BY: JPMORGAN CHASE BANK, N.A.

TENTATIVE RULING:

Background

Plaintiff filed an amended motion, on 3/27/26, to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where they were personally served with process.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$10,289.47, plus costs, less any credits for payments received.

The Defendant made payments of \$0.

Costs are \$0.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$10,289.47.

Plaintiff shall submit the order and judgment.

11. 9:00 AM CASE NUMBER: L25-10452
CASE NAME: TD BANK USA, N.A. VS. MAELVIN HILARIO
***HEARING ON MOTION IN RE: STAY PROCEEDINGS PENDING APPEAL**
FILED BY: HILARIO, MAELVIN
TENTATIVE RULING:

Background

Defendant filed a Motion to stay proceedings pending appeal.

The appeal stems from a decision by this court, on 2/3/26, to deny Defendant's request to compel arbitration and stay proceedings in superior court.

There is a trial in the matter set in August, 2026.

Analysis

Under Section 916(a) of the CCP, "[T]he perfecting of an appeal stays proceedings in the trial court upon the ... order appealed from or upon the matters embraced therein, or affected thereby."

In the instant matter, the issue resolved on 2/3/26, clearly affects the remainder of these proceedings, particularly the trial. If the appeal is resolved in Defendant's favor, then compelled arbitration may still occur in the matter, staying the proceedings, particularly the trial.

Thus, Section 916 applies.

Moreover, while there are some exceptions under Section 917 et seq., they do not appear to apply to the instant matter.

Disposition

Defendant's Motion to Stay Proceedings pending appeal is granted.

The court trial will be vacated.

A CMC is scheduled for 10/23/26 at 8:30 am.

The court will file the order and notice the parties.

12. 9:00 AM CASE NUMBER: L25-10452
CASE NAME: TD BANK USA, N.A. VS. MAELVIN HILARIO
***HEARING ON MOTION IN RE: FOR RECONSIDERATION**
FILED BY: HILARIO, MAELVIN
TENTATIVE RULING: